**NORRIS TRUST**

**Versus**

**MERCY MUZONDIWA (nee MHAKA)**

IN THE HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 7 JULY 2025, 12 NOVEMBER 2025, 20 JANUARY, 11 MAY, 18 MAY AND 11 JUNE 2026

**Civil trial**

*G. Madzoka with D Mujaya and T. J Madotsa,* for the plaintiff
*I. Nderere,* for the defendant

**KABASA J**: This matter took an unprecedented 17 years to be finalised. This unfortunate delay was occasioned by endless postponements occasioned at times by the change of legal representation by the defendant and the allocation of the matter to a different judge when, due to the circumstances of the case, the matter ought to have been placed before the same judge who had dismissed the defendant's counter-claim.

The foregoing was necessary to explain the inordinate delay in finalising the trial as evidenced by the dates when the matter was instituted and the date when it was finalised.

On 20 July 2009, the plaintiff issued summons against the defendant in which it claimed the following:-

"a) The ejectment of the defendant from No. 2 Flamboyant Avenue Msasa Park Kwekwe and all those claiming occupation through the defendant.

b) Holding over damages at the rate of US$300 per month with effect from the date of service of summons to date of eviction.

c) Interest thereon at the prescribed rate from the date of summons to date of final payment.

d) Costs of suit."

The plaintiff's claim, as elaborated in the declaration is premised on the assertions that the plaintiff is the registered owner of Stand 376 Que Que Township of stand 490 Que Que Township, more commonly known as No. 2 Flamboyant Avenue, Msasa Park, Kwekwe. The

defendant is in wrongful and unlawful occupation of the property and has resisted eviction despite issuance of notice to vacate. A notice of amendment filed later gave the property's correct description as 2B Flamboyant Avenue, Msasa Park, Kwekwe.

After the defendant filed a notice of appearance to defend, the plaintiff unsuccessfully applied for summary judgment.

In resisting the plaintiff's claim, the defendant averred that the plaintiff holds no title to the property as the Title Deed is a forged document. The defendant further asserted that she is in lawful occupation of the property which was sold to her before the plaintiff's purported purchase of the same.

The defendant had, under case number HC 2256/19 instituted proceedings in which she claimed the same property. That claim was dismissed, having been adjudged to have prescribed. The two matters had been consolidated and with the dismissal of the defendant's claim, the only matter which remained was that of the plaintiff.

At the commencement of the trial the plaintiff abandoned the claims for holding over damages and interest. With the dismissal of the defendant's claim under HC 2246/19 it meant that the issues referred to trial inevitably changed. The relevant issues for the purposes of the trial remained as:-

1. Whether plaintiff is the registered owner of stand 376 Que Que Township of stand 490 Que Que Township, more commonly known as number 2B Flamboyant Avenue, Msasa Park, Kwekwe.

2. Whether Deed of Transfer number 2106/2008 is an authentic document.

3. Whether the defendant is in lawful occupation of the property.

The plaintiff's only witness was Mr Thomas Norris, a trustee and founder of the Trust. After his testimony, an application for absolution from the instance was made and it was dismissed.

The gist of Mr Norris's testimony was that he registered the Norris Trust in 2003. The Deed of Trust was produced and marked exhibit 1. The property in question was bought as an investment. It was bought from the estate of the late Irene Helen Gerterbach, which estate was represented by Mr Byron Venturas. The Agreement of Sale was concluded on 17 June 2008

and it was between the executor Byron Venturas and the plaintiff. The Agreement of Sale was produced as exhibit 2 and the Letters of Administration appointing Mr Byron Venturas as executor were equally produced and marked exhibit 3. A section 120 of the Administration of Estates Act [Chapter 6:10] granted by the Master and dated 20 August 2008 was produced and marked exhibit 4. The Title Deed which was obtained after the conclusion of the sale was produced and marked exhibit 5.

It was the plaintiff's witness's testimony that they have been unable to access the property since 2008 as the defendant refused to vacate same. All utility bills are however being paid by Mr Norris and defendant is not paying rentals.

This witness's evidence was clear and straightforward. The evidence was supported by documentary evidence confirming the witness's testimony.

I found no fault with the witness's evidence and did not consider him unreliable due to his conduct under cross-examination. His impatience was, to my mind, as a result of frustration rather than lack of credibility.

The witness's evidence established the following:-

1. The existence of an Agreement of Sale.
2. The purchase price paid for the property.
3. The Deed of Transfer obtained after the conclusion of the sale.
4. The fact that the defendant is in occupation of the property against the witness's consent and there is no landlord-tenant relationship between them.

The defendant was also the only witness to testify. The gist of her evidence was that she resides at the property in question and has been so resident since 2003, as the owner. She bought the house from the estate of the late Irene Gertenbach represented by her son, Gary Craig Gertenbach. When she bought the property Gary had not been appointed as the executor and the estate of the late Irene had not yet been registered. Irene died in November and she bought the property in December. No purchase price was set and the payments were through a special arrangement, which included, *inter alia,* the feeding of dogs, payment of a Net-one debt, payment of costs associated with the rectification of Gary's sister's documents, buying of a house for Gary's mother's employee, looking after Gary's mentally challenged grandfather

and paying for Gary's financial needs when he was travelling to the airport supposedly en route to the United Kingdom.

She had no proof of any of the expenditure ostensibly because when she came to court she was anticipating a postponement and so left whatever proof she had at home.

I have already mentioned the inordinate delay in the finalisation of this matter. Such delay was due to the defendant's requests for postponements and when one such postponement was refused she appeared to have developed an inexplicable inability to breathe, which caused the aborting of the hearing. Despite the many postponements and the indulgencies extended to her, the defendant was of the view that she had not been fairly treated because when she sought another postponement, the court rolled over the matter to the following day to allow her counsel to appear, which he did.

Unlike the plaintiff's witness, the defendant appeared bent on dragging out the trial and playing victim.

What was clear from her testimony and from her responses under cross-examination was the following:-

1. The plaintiff has title to the property.
2. She attempted to challenge such title but did not succeed.
3. She is in occupation of the property but does not pay any rentals. Her occupation is without the plaintiff's consent.
4. There is no court order which speaks to plaintiff's title being a forged document.
5. She derives the right to occupy the property from the dismissal of the plaintiff's application for summary judgment.
6. When she purportedly bought the property the estate of the late Irene had not yet been registered and consequently no executor had been appointed.
7. There is no proof of a sale agreement or payments of the purchase price as no purchase price was ever agreed on.
8. No documents were discovered relating to any of the averments made with regards to the purchase of the property.

With the foregoing in mind, I turn now to consider the issues to be resolved.

1. **Is the Plaintiff the registered owner of No. 2 B Flamboyant Avenue, Msasa, Kwekwe?**

Both counsels properly identified this action as one premised on *rei vindicatio*. The requirements for such a claim to succeed have been stated in a plethora of cases. Counsel for the plaintiff relied on *Jolly* v *Shannon* 1998 (1) ZLR 78 where the court had this to say:-

> "The principle on which the action *rei vindicatio* is based is that an owner cannot be deprived of his property against his will and that he is entitled to recover it from any person who retains possession of it without his consent. The plaintiff in such a case must allege and prove that he is the owner of a clearly identifiable movable or immovable asset and that the defendant was in possession of it at the commencement of the action. … The onus is on the defendant to prove a right of retention." (See also *Twin Wires Agency (Pvt) Ltd* v *CABS* 2005 (2) ZLR 34 (S), *Stanbic Finance Zimbabwe* v *Chivhungwa* 1999 (1) ZLR 262, *Oakland Nominees* v *Gelria Mining & Investment Co. Limited* 1976 (1) SA 441, *Unimark Distributors (Pvt) Ltd* v *ERF 94 Silvertondale (Pvt) Ltd* 1999 (2) SA 986)

The plaintiff has title to the property. In *Takapfuma* v *Takapfuma* 1994 (2) ZLR 103 (S) the court stated that title conveys real rights upon those in whose name the property is registered. It is a matter of substance not mere form.

The defendant's argument is that such title is a forged document. I can do no more than cite the case counsel for the plaintiff referred to, *Nyahondo* v *Hokonya & Ors* 1979 (2) ZLR 457 (S) where the court said where one sets up a special defence he is regarded as the claimant and so bears the onus of satisfying the court that he is entitled to succeed on it. So while ordinarily the burden of proof lies on the party making a positive assertion, where a negative assertion forms an essential part of the defence, the burden lies on that party.

Sight must not be lost of the fact that defendant's attempt to challenge the plaintiff's title was unsuccessful. She conceded as much.

Reference was made to GOWORA JA's (as she then was) remarks in *Indium Investments (Pvt) Ltd* v *Kingshaven (Pvt) Ltd & 2 Ors* S 40-15 where the judge said:-

> "A plea is a defence and as such can be likened to a shield. It is not a weapon or a sword. No relief can attach to a party through a plea."

I must make the point that I am seized with a vindicatory action and not an application seeking the setting aside of the plaintiff's Title Deed.

In *Katsande* v *Katsande & Ors* HH 113-2010 the court held that the sale of a property where the executor had no authority to dispose of it was a nullity and consent of the Master is a pre-requisite to validate such sale. However, as already alluded to, efforts to impugn the title were unsuccessful, for whatever reason, which reasons are not material for purposes of this case. The title has therefore not been set aside and these are not proceedings meant to set such aside.

On record therefore is a Deed of Transfer, an Agreement of Sale and an executor duly appointed who sold the property in question.

The plaintiff therefore is the registered owner of the property. This issue is therefore resolved in the plaintiff's favour.

With the resolution of the first issue, the second issue cannot possibly be resolved differently. There is nothing to show that the Deed of Transfer is not authentic. It is but a bare unsubstantiated allegation by the defendant.

There is no court order speaking to the invalidity of the Title Deed. The plaintiff holds such Title Deed which bestows on it exclusive rights exercisable against the whole world.

The court was referred to s8(1) of the Deeds Registries Act [Chapter 20:05], which provides that:-

> "8(1) Save as is otherwise provided in this Act or in any other enactment, no registered deed of grant, deed of transfer, certificate of title or other deed conferring or conveying title to land or any real right in land other than a mortgage bond, and no cessation of any registered bond not made as security, shall be cancelled by a Registrar except upon an order of court."

I have already alluded to the fact that the defendant unsuccessfully tried to challenge the plaintiff's Title Deed. These proceedings are not to be utilised for the purposes of mounting another challenge.

There is therefore nothing that speaks to the Title Deed's lack of authenticity. The second issue is therefore resolved in plaintiff's favour.

3. **Is the defendant in lawful occupation of the property?**

The defendant does not dispute the fact that she has been given notice to vacate which she resisted.

Has she shown some enforceable right against the owner or a right of retention? Counsel for the defendant cited *Savanhu* v *Hwange Colliery Company* S 8-15 for the proposition that the efficacy of a *rei vindicatio* is contingent upon the plaintiff's ability to demonstrate a valid, lawful and unimpeachable title to the property. I have already addressed this issue. The plaintiff's title had not been successfully impugned.

Counsel referred to the case of *Chikuni & Ors* v *Chikuni & Ors* HB 143-21 where the court was dealing with an application for condonation and considered the prospects of success in the main application where the issue of the sale of a property without the Master's prior s 120 Authority was germane and held that such prospects existed as the sale was a nullity without such authority. My view is the present matter is not one where title is being impugned for a failure to obtain a s120 Authority before the sale of the property. (*Ebrahim* v *Ebrahim & Ors* HH 448-18).

The defendant could have successfully impugned the title but was not successful in proceedings that were meant to achieve that outcome.

She claims a right of retention in that she bought the property from the son of the late Irene at a time when the estate had not yet been registered and no executor appointed.

She has no Agreement of Sale, no proof of the payment of the purchase price and concedes there was no such purchase price set.

Gary could not sell that which he had no authority to sell. He was not an executor of the late Irene's estate. (*Muchini* v *Adams & Ors* 2011 (2) ZLR 219) *Muchini* v *Adams* 2013 (1) ZLR 67 (S)).

The court was also referred to the decision in *Mazulu* v *Katiyo & Anor* HH 797-15 where the court had this to say: -

> "In order for a sale to exist, there must be an agreement to exchange property for a price. If either of these two constituents is lacking, there is no sale."

The defendant, in response to a question regarding how much she paid for the property, responded thus:

"It was a special arrangement because he did not want cash but wanted me to cater for expenses left by his mother."

Asked whether they agreed on a purchase price, she curiously responded:-

"He said if I pay all the expenses as per request I would have paid the full purchase price. He said he did not want money as the dependants would suffer."

Asked whether there was an agreed monetary value for the property, she responded:-

"He was not concerned with the purchase price but only that which needed to be paid for."

The questioning was unrelenting, a further question was posed:-

"Was there an agreed monetary value", to which she responded: -

"I just wanted to buy a house and he wanted me to do what he wanted me to do for him."

There can be no prevarication that surpasses what was demonstrated here. The long and short of it is that the defendant could not say what the purchase price was and what she paid for the purchase of the property. She alleges she actually bought a house for the late Irene's employee and yet she appears not to appreciate what is expected of one when they are buying an immovable property.

Even one who buys an ice-cream knows what they paid for such ice-cream. How can one talk of purchasing a house and be wishy-washy on the terms of the agreement?

What evidence did the defendant want to produce which was not discovered? How could she claim to have left such evidence at home because she came to court anticipating a postponement? Her story makes no sense especially regard being had to the fact that her legal practitioner came on the day the matter was rolled over to and had such evidence been available, counsel would have known about it and it would have been discovered at the appropriate time.

There was therefore no evidence of a sale of the property. The Contractual Penalties Act [Chapter 8:04] provides, in s 7 thereof that:-

"Every instalment sale of land shall be reduced to writing."

Where such has not been done, the onus of proving the existence of such contract shall rest on the person alleging its existence.

The defendant dismally failed to prove the existence of such contract. With that failure, the defendant failed to show that she is in lawful occupation of the property.

The plaintiff therefore proved ownership equally proved that the defendant' occupation of the property is without consent and the defendant did not prove any right of retention.

The requirements for a *rei vindicatio* have been met and the plaintiff is entitled to the relief it seeks.

The defendant has deprived the plaintiff of the use of its property for a period of almost 17 years. The matter has taken long to be finalised due to the defendant's conduct. She has put the plaintiff out of pocket unnecessarily. Her conduct is deserving of censure.

A case has been made for punitive costs. Litigants ought not to be allowed to drag cases for inordinate periods just so as to derive a benefit they are not entitled to and harassing the other party in the process.

In the result I make the following order:-

1. The defendant and all those claiming occupation through her be and are hereby ejected from House No. 2 B Flamboyant Avenue, Msasa Park, Kwekwe.

2. The defendant shall pay costs of suit at attorney-client scale.

*Madotsa and Partners*, plaintiff's legal practitioners
*Scanlen and Holderness*, defendant's legal practitioners